

MOUNTAIN CEMENT COMPANY MINOR SUBDIVSION - FIRST REPLAT

BEING A REPLAT OF LOT A, RECORDED EXEMPTION NO. 1057-03-04 RE-3237 & LOTS 1 AND 2, MOUNTAIN CEMENT COMPANY MINOR SUBDIVISION

LOCATED IN THE SOUTHEAST QUARTER OF SECTION 3, TOWNSHIP 4 NORTH, RANGE 66 WEST OF THE 6TH P.M.

CITY OF EVANS, COUNTY OF WELD, STATE OF COLORADO

"City of Evans Case No. 26-AP-01"

OWNERSHIP, DEDICATION, & MAINTENANCE STATEMENT:

MOUNTAIN CEMENT COMPANY LLC, being the sole owner(s) of:

A parcel of land being a part of the Southeast Quarter (SE ¼) of Section 3, Township 5 North, Range 66 West of the 6th P.M., City of Evans, County of Weld, State of Colorado more particularly described as follows:

Lot A, Recorded Exemption No. 1057-03-04 RE-3237 recorded August 28, 2002 as Reception No. 2982237 of the Records of Weld County;

AND

Lots 1 and 2, MOUNTAIN CEMENT COMPANY MINOR SUBDIVISION, recorded July 25, 2025 as Reception No. 5043502 of the Records of Weld County.

Containing 83.33 acres, more or less, shown on the attached map as embraced within the heavy exterior lines thereon, has subdivided the same into lots, blocks and tracts as shown on the accompanying map and does hereby set aside said tract of land and designate the same as MOUNTAIN CEMENT COMPANY MINOR SUBDIVISION: FIRST REPLAT, a subdivision of land in the City of Evans, Weld County, Colorado, and does hereby dedicate to the public the streets, rights-of-way, and easements at the locations shown and for the purposes shown on said map and does further certify that the width of said streets, the dimensions of the lots, tracts, outlots, and the names and numbers thereof are correctly designated upon said map.

Executed this _____day of _____, A.D., _____.

OWNER: Ben Bufmack on behalf of MOUNTAIN CEMENT COMPANY LLC
TITLE: Vice President Operations

State of Colorado)
City of Evans) SS
County of Weld)

The foregoing was acknowledged before me

This _____day of _____, A.D., _____.

My commission expires: _____

WITNESS my hand and seal

Notary Public

CITY ENGINEER CERTIFICATION

Approved by the City Engineer of the City of Evans, Colorado.

This _____day of _____, A.D., _____.

Approval shall not relieve the Design Engineer's responsibility for errors, ominnsions, or design deficiencies for with the City is held harmless.

City Engineer

COMMUNITY DEVELOPMENT CERTIFICATION

Approved by the Community Development Director of the City of Evans, Colorado.

This _____day of _____, A.D., _____.

Community Development Director

RIGHT TO FARM STATEMENT:

Weld County is one of the most productive agricultural counties in the United States, typically ranking in the top ten counties in the country in total market value of agricultural products sold. The rural areas of Weld County may be open and spacious, but they are intensively used for agriculture. Persons moving into a rural area must recognize and accept there are drawbacks, including conflicts with long-standing agricultural practices and a lower level of services than in town. Along with the drawbacks come the incentives which attract urban dwellers to relocate to rural areas: open views, spaciousness, wildlife, lack of city noise and congestion, and the rural atmosphere and way of life. Without neighboring farms, those features which attract urban dwellers to rural Weld County would quickly be gone forever.

Agricultural users of the land should not be expected to change their long-established agricultural practices to accommodate the intrusions of urban users into a rural area. Well-run agricultural activities will generate off-site impacts, including noise from tractors and equipment; slow-moving farm vehicles on rural roads; dust from animal pens, field work, harvest and gravel roads; odor from animal confinement, silage and manure; smoke from ditch burning; flies and mosquitoes; hunting and trapping activities; shooting sports, legal hazing of nuisance wildlife; and the use of pesticides and fertilizers in the fields, including the use of aerial spraying. It is common practice for agricultural producers to utilize an accumulation of agricultural machinery and supplies to assist in their agricultural operations. A concentration of miscellaneous agricultural materials often produces a visual disparity between rural and urban areas of the County. Section 35-3.5-102, C.R.S., provides that an agricultural operation shall not be found to be a public or private nuisance if the agricultural operation alleged to be a nuisance employs methods or practices that are commonly or reasonably associated with agricultural production.

Water has been, and continues to be, the lifeline for the agricultural community. It is unrealistic to assume that ditches and reservoirs may simply be moved "out of the way" of residential development. When moving to the County, property owners and residents must realize they cannot take water from irrigation ditches, lakes or other structures, unless they have an adjudicated right to the water.

Weld County covers a land area of approximately four thousand (4,000) square miles in size (twice the size of the State of Delaware) with more than three thousand seven hundred (3,700) miles of state and County roads outside of municipalities. The sheer magnitude of the area to be served stretches available resources. Law enforcement is based on responses to complaints more than on patrols of the County, and the distances which must be traveled may delay all emergency responses, including law enforcement, ambulance and fire. Fire protection is usually provided by volunteers who must leave their jobs and families to respond to emergencies. County gravel roads, no matter how often they are bladed, will not provide the same kind of surface expected from a paved road. Snow removal priorities mean that roads from subdivisions to arterials may not be cleared for several days after a major snowstorm. Services in rural areas, in many cases, will not be equivalent to municipal services. Rural dwellers must, by necessity, be more self-sufficient than urban dwellers.

People are exposed to different hazards in the County than in an urban or suburban setting. Farm equipment and oil field equipment, ponds and irrigation ditches, electrical power for pumps and center pivot operations, high-speed traffic, sand burs, puncture vines, territorial farm dogs and livestock and open burning present real threats. Controlling children's activities is important, not only for their safety, but also for the protection of the farmer's livelihood. (Weld County Code Ordinance 2002-6; Weld County Code Ordinance 2008-13)

RIGHT-OF-WAY DEDICATION:

47th Avenue right-of-way, as shown hereon, is hereby dedicated by this plat to the City of Evans as a public right-of-way. This right-of-way was accepted by City Council Ordinance Number XXX-26, recorded at Reception Number XXXXXXXX.

PURPOSE FOR REPLAT STATEMENT:

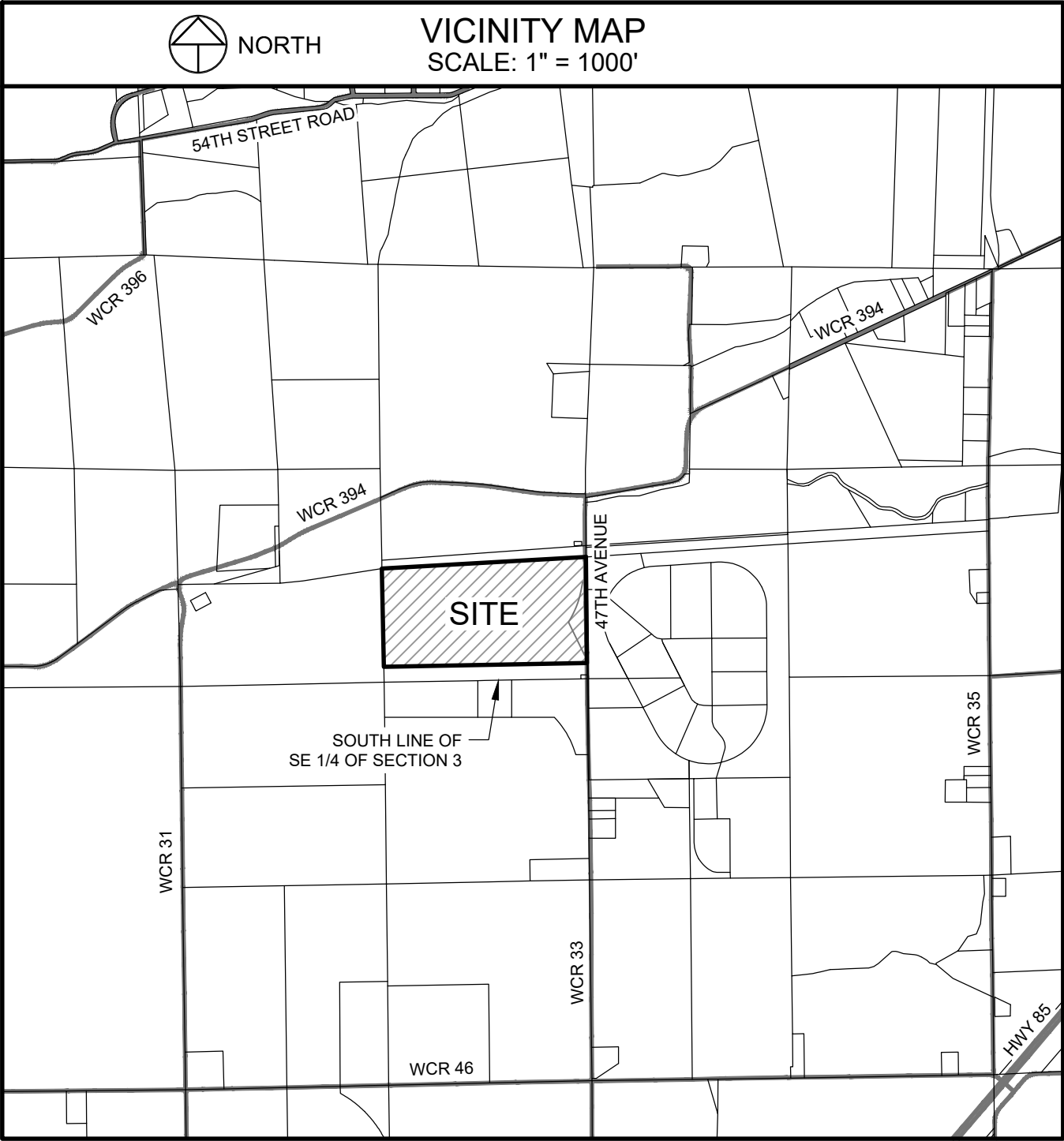
The purpose of this replat is to combine by plat, two parcels currently owned by Mountain Cement Company, into one lot. This resultant Lot 1 will contain the Mountain Cement Company Site Plan. The replat also accomplishes required water service arrangements with CWCWD, specifically to extend a water line on the former Walter parcel to the MCC Control Room.

DEVELOPMENT STANDARDS:

- Approval of this plan may create a vested property right pursuant to Article 68 of Title 24 C.R.S., as amended.
- The plans reviewed by the City and subsequently recorded withe Weld County Clerk and Recorder constitute the extent of the Land Use Approval. Any changes may necessitate an amendment to the Land Use Permit.
- All land use activities occurring on the property are required to have a site-specific development plan such as a site plan or a special use permit.
- All required building permits structures, buildings, building additions and new signs shall be filed with the City of Evans for review and issuance. Review by the Evans Fire Protection District is required.
- The property owner is responsible for providing an adequate amount and quality of water supply to the property to serve the proposed development.
- The application reviewed by the City and subsequently recorded with Weld County Clerk and Recorder constitute the extent of the approval for a replat.
- The site shall remain in compliance with the City Code, at all times.

SURVEYOR NOTES:

- The lineal unit of measure for this survey is U.S. Survey Feet.
- The basis of bearing is the east line of the Southeast Quarter of Section 3 as bearing North 00° 01' 39" West a distance of 2778.85 feet, and being monumented on the south by a #6 rebar with a 3.25" aluminum cap stamped LS 38353 and on the north by a 3" iron pipe with a 3.25" aluminum cap stamped LS 13258 with all other bearings contained herein relative thereto.
- Subject property contains 3,629.691 square feet, or 83.33 acres, more or less.
- Current Zoning: City of Evans - Heavy Industrial (I-3)
- For all information regarding easements, right-of-way or title of record, EPS Group relied upon Old Republic National Title Insurance Company, Commitment Order No: FCIF25210868, dated April 05, 2024 to aid in easement and ownership research.
- FLOOD ZONE DESIGNATION: The subject property is in Zone X, "areas of minimal flood hazard" per FEMA Flood Map 08123C1709F, with an effective date of November 30, 2023.
- All improvement and development obligations, shall be set forth in a separate agreement signed by the property owner seeking development approval for a lot. Nothing herein shall impose any development or improvement obligations upon Applicant, pursuant to this plat.
- A copy of the title commitment and the documents contained therein were provided to the owner, client and attorney listed hereon for their use and review.
- Not all documents listed in the title commitment are plottable or definable by their terms. All easements that are definable by their descriptions are shown hereon with sufficient data to establish their position. Owner, Client and others should refer to the title commitment and those documents listed therein for a true understanding of all rights of way, easements, encumbrances, interests and title of record concerning the subject property.
- Easements and other record documents shown or noted hereon were examined as to location and purpose and were not examined as to restrictions, exclusions, conditions, obligations, terms, or as to the right to grant the same.
- The word "State", "certify" or "certification" as shown and used hereon is an expression of professional opinion regarding the facts of the survey, and does not constitute a warranty or guaranty, expressed or implied. DORA Bylaws and Rules (4 CCR 730-1).
- EPS Group or the Professional Land Surveyor listed hereon, does not have the expertise to address mineral rights, and recommends the owner retain an expert to address these matters. EPS Group or the Professional Land Surveyor listed heron assumes no responsibility for the mineral rights upon the subject property.
- Adjacent property owner information per the Weld County Property Portal.
- Per CRS 38-51-105 (3)(a), (3)(b), (4)(b), (4)(c), & 5, the Developer/Owner of the subdivision plat has the requirement of providing monumentation of the interior corners created by this platting procedure within one year of the effective date of a sales contract. The Surveyor of record of said subdivision plat has only the required responsibility of providing for the on the ground monumentation of the external boundary of the subdivision plat.
- It is unlawful under Colorado Revised Statutes Title 18. Criminal Code § 18-4-508 to knowingly disturb, deface, remove, or destroy a land survey monument or accessory.



LEGEND	
	PLAT BOUNDARY LINE
	PROPOSED RIGHT-OF-WAY LINE
	PROPOSED LOT LINE
	PROPOSED EASEMENT LINE
	EXISTING LOT LINE
	EXISTING EASEMENT LINE
	SECTION LINE
	RIGHT OF WAY LINE
	EXISTING FENCE LINE
	SURVEY TIE LINE
	VACATED LOT LINE
	FOUND #4 REBAR WITH YELLOW PLASTIC CAP, PLS 38353 UNLESS OTHERWISE DESCRIBED
	SET 18" #4 REBAR WITH 1" ORANGE PLASTIC CAP, LS 38882 UNLESS OTHERWISE DESCRIBED
	FOUND SECTION CORNER MONUMENT AS DESCRIBED
	RIGHT-OF-WAY
	WITNESS CORNER
	RECORD DIMENSION
	UTILITY EASEMENT

SURVEYOR'S STATEMENT

I, Tharen J. Helgerson, a Colorado Professional Land Surveyor do hereby certify that this Subdivision Plat was prepared from an actual survey under my personal supervision, that the monumentation as indicated hereon were found or set as shown, and that the foregoing plat is an accurate representation thereof, all this to the best of my knowledge, information and belief.

PRELIMINARY
07/17/2026
FOR REVIEW ONLY

Tharen J. Helgerson
Colorado Professional Land Surveyor No. 38882
For and on behalf of EPS Group, Inc.

DEVELOPER / APPLICANT

Jaime Duran
Eagle Materials Inc.
15100 E. Courtney Atherton Rd
Sugar Creek, MO 64058
Phone: (816) 365-1626

SITE ENGINEER

EPS Group, Inc.
c/o Adam Boese
301 North Howes Street, Suite 100
Fort Collins, Colorado 80521
Phone: (970) 221-4158

SITE SURVEYOR

EPS Group, Inc.
c/o Tharen J. Helgerson, PLS
301 North Howes Street, Suite 100
Fort Collins, Colorado 80521
Phone: (970) 221-4158

MOUNTAIN CEMENT COMPANY MINOR SUBDIVSION -
FIRST REPLAT
EVANS, WELD COUNTY, COLORADO

Sheet
1
Of 2 Sheets

NOTICE:
According to Colorado law you must commence any legal action based upon any defect in this survey within three years after you discover such defect. In no event may any action based upon any defect in this survey be commenced more than ten years after the date of the certificate shown hereon.

SECTION:
03
TOWNSHIP:
4 NORTH
RANGE:
66 WEST OF 6TH PW

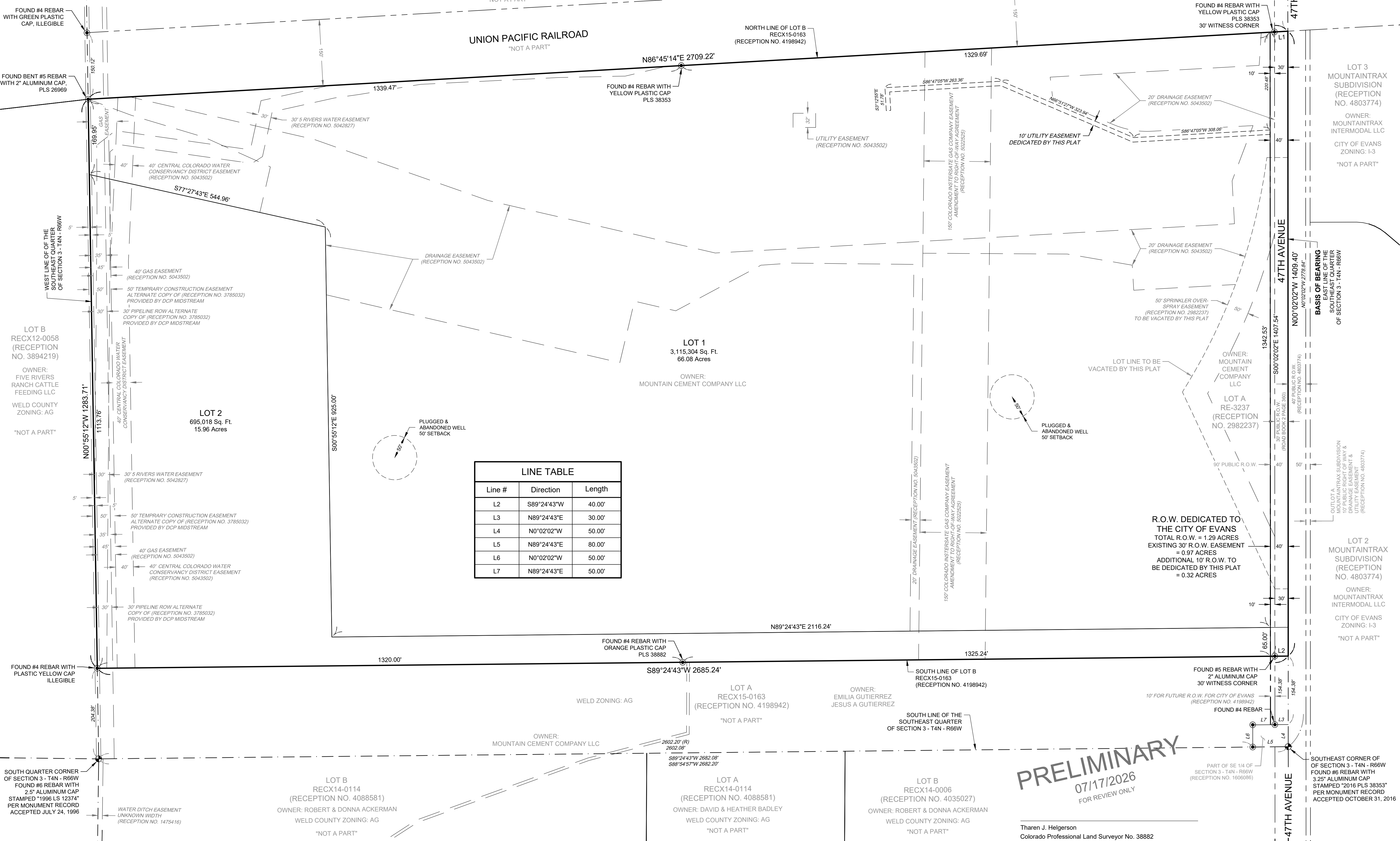
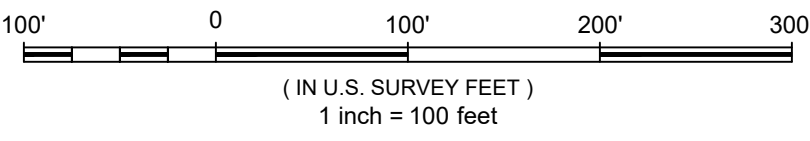
DATE: 07/17/2026
SCALE: AS SHOWN
PROJECT: 1938-002
CLIENT: MCC
DRAWN BY: T. HELGERSON
REVIEWED BY: J. BUNNER

EPS GROUP
970.221.4158
eps@epsinc.com
ARIZONA | COLORADO

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R.O.W. DEDICATED TO
THE CITY OF EVANS
TOTAL R.O.W. = 1.29 ACRES
EXISTING 30' R.O.W. EASEMENT
= 0.97 ACRES
ADDITIONAL 10' R.O.W. TO
BE DEDICATED BY THIS PLAT
= 0.32 ACRES

PRELIMINARY
07/17/2026
FOR REVIEW ONLY

Tharen J. Helgerson
Colorado Professional Land Surveyor No. 38882
For and on behalf of EPS Group, Inc.

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FIRST REPLAT
EVANS, WELD COUNTY, COLORADO

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SECTION:	03	TOWNSHIP:	4 NORTH
DATE:	07/17/2026	SCALE:	AS SHOWN
PROJECT:	1938-002	CLIENT:	MCC
DRAWN BY:	T. HELGERSON	REVIEWED BY:	J. BUNNER

